

In T.270/19 the board noted that the relevant circumstances of the case were to be taken into account when exercising discretion. In particular, consideration was to be given as to whether further investigations would be required, whether the facts of the case had changed significantly since the contested decision and what view the applicant took of the possible "loss of an instance". The weight given to each factor depended on the circumstances of the case in hand.

9.2.2 Remittal and scope of review

- a) Primary object of appeal proceedings is to review decision under appeal in a judicial manner

In several decisions, the boards have pointed out that Art. 11 RPBA 2020 is to be read in conjunction with Art. 12(2) RPBA 2020, which provides that the primary object of the appeal proceedings is to review the decision under appeal in a judicial manner (T.731/17).

- b) Ex parte proceedings

In ex parte cases too, proceedings before the boards of appeal are primarily concerned with reviewing the contested decision.

In T.2154/15 the board observed that the legal framework had been interpreted by the Enlarged Board in G.10/93 (OJ 1995, 172), which had held that in ex parte proceedings the boards of appeal were restricted neither to examination of the grounds for the contested decision nor to the facts and evidence on which that decision was based, and could include new grounds in the proceedings. Proceedings before the boards of appeal in ex parte cases were primarily concerned with examining the contested decision. If, however, there was reason to believe that a condition for patentability might not have been satisfied, the board either incorporated it into the appeal proceedings or ensured by way of referral to the examining division that it was included when examination was resumed. Stating that Art. 111(1) EPC gave the boards discretion and that they could not be deprived of this discretion by the RPBA, the board concluded that the RPBA 2020 did not limit the powers of the boards as laid down in Art. 111 EPC.

- c) Inter partes proceedings

In T.1370/15 the board stated that remitting a case because of new submissions would generally be contrary to what was intended by Art. 11 RPBA 2020. It noted that, while the Enlarged Board had found in G.10/91 (OJ 1993, 420) that the appeal procedure in inter partes cases was less investigative than the procedure before the opposition division, Art. 114(1) EPC – which required the EPO to examine the facts of its own motion – still applied. This meant that a board was not precluded outright from introducing new facts and evidence in inter partes proceedings. The RPBA 2020 similarly did not prohibit a board from raising issues of its own motion. See also T.862/16.

9.2.3 TRIPS

Nor does Art. 32 TRIPS limit the board's discretion concerning remittal. In T 557/94 the board held that Art. 32 TRIPS (which provides for the judicial review of any decision to revoke a patent) did not oblige the reviewing instance to remit the case to the department of first instance, where the department of first instance did not revoke the patent and the reviewing instance intended to deviate from the decision of the first instance. Art. 111 EPC 1973 empowered the board to decide on the merits of the case without restriction and it would be alien to at least the majority of legal systems in the EPC contracting states to limit the power of the reviewing instance in such a way that – dependent upon the "result" of the decision under attack – it would be bound to remit the case to the department of first instance (see also G 1/97, OJ 2000, 322).

9.3. Special reasons for remittal

9.3.1 Introduction

Under Art. 11 RPBA 2020, a case is not to be remitted to the department whose decision was appealed, unless special reasons present themselves for doing so.

Whether "special reasons" present themselves is to be decided on a case-by-case basis. If all issues can be decided without undue burden, a board should normally not remit the case (see explanatory remarks on Art. 11 RPBA 2020 in Supplementary publication 2, OJ 2020).

In T 1531/16, the board held that, in view of the legislative intent reflected in the revised version of Art. 11, first sentence, RPBA 2020, a case should be remitted only if special reasons presented themselves for doing so, i.e. in exceptional cases (see also T 3247/19).

When deciding whether or not to remit a case, the boards have considered what special reasons within the meaning of Art. 11 RPBA 2020 presented themselves, e.g. whether there had been a comprehensive assessment of the case during the proceedings at first instance (see chapter V.A.9.3.2), whether the claims had been substantially amended (see point V.A.9.3.5), whether the search was complete (see chapter V.A.9.3.6) and whether the first-instance proceedings had been vitiated by fundamental deficiencies (see chapter V.A.9.4.). Other factors have also been taken into account, such as the need for procedural economy, the length of the proceedings, fairness of the proceedings and whether the parties requested remittal of the case. The weight given to each factor depended on the circumstances of the case in hand.

9.3.2 Non-examined patentability issues

a) Introduction

Since the main purpose of appeal proceedings is to give a losing party an opportunity to challenge a decision on its merits, remittal in accordance with Art. 111(1) EPC has normally been considered by the boards where essential questions regarding the

patentability of the claimed subject-matter have not yet been examined and decided on by the department of first instance. This applies to both ex parte and inter partes proceedings. In particular, remittal is considered by the boards in cases where a first-instance department has issued a decision against a party based solely on one particular issue which was decisive for the case, but left other essential issues outstanding. This current practice is in keeping with the primary object of appeal proceedings of reviewing the decision under appeal in a judicial manner (Art. 12(2) RPBA 2020).

In several decisions, the boards have pointed out that Art. 11 RPBA 2020 is to be read in conjunction with Art. 12(2) RPBA 2020, which provides that the primary object of the appeal proceedings is to review the decision under appeal in a judicial manner (T 731/17). This principle would not be respected if the board were to conduct a complete examination of the application or patent (T 1966/16; see also T 547/14, T 275/15, T 1077/17, T 1508/17, T 2519/17 and T 3218/19).

In the cases reported in the following sections, the boards found that there were special reasons justifying remittal to the department of first instance.

b) Primary object of the appeal proceedings

In T 1966/16 the board stated that the sole ground for the refusal set out in the decision under appeal, namely a lack of inventive step, was not justified. The board held that special reasons were apparent in the case in hand because the examining division had not taken an appealable decision on essential outstanding issues with respect to Art. 83, 84 and 123(2) EPC. As set out in Art. 12(2) RPBA 2020, the primary object of the appeal proceedings was to review the decision under appeal in a judicial manner. This principle would not be respected if the board were to conduct a complete examination of the application. Consequently, Art. 11 RPBA 2020 did not entail the board carrying out a full examination of the application for compliance with the requirements of Art. 83, 84 and 123(2) EPC, for which no decision at first instance existed yet (see also T 2519/17).

In T 731/17 the board noted that Art. 11 RPBA 2020 is to be read in conjunction with Art. 12(2) RPBA 2020, which provides that it is the primary object of the appeal proceedings to review the decision under appeal in a judicial manner. The board stated that inventive step over documents D1 to D4 had not yet been assessed in detail. Moreover, it might need to be investigated whether document D2 belonged to the state of the art under Art. 54(2) EPC at all. Not remitting the case to the examining division would require the board to perform these tasks in both first- and last-instance proceedings and to effectively replace the examining division rather than review the contested decision in a judicial manner (see also T 658/17).

In T 986/16 the board stated that, since the main purpose of the appeal proceedings was to give the losing party an opportunity to challenge the decision of the opposition division on its merits (see G 10/91, OJ 1993, 420), remittal in accordance with Art. 111(1) EPC had normally been considered by the boards in cases where the opposition division had issued a decision solely on one particular issue (e.g. novelty) and left other substantive issues (e.g. as regards inventive step) undecided.

In T.1627/17, sufficiency of disclosure was the only ground for opposition on which a decision had been taken. All the parties to the appeal proceedings had requested remittal of the case to the opposition division for consideration of the other grounds for opposition raised by the opponent in its notice of opposition (lack of novelty and lack of inventive step). The board stated that, although the EPC did not guarantee the parties an absolute right to have all the issues in the case considered at two instances, it was well recognised that any party could be given the opportunity to have two readings of the important elements of a case. The essential function of an appeal was to consider whether the decision issued by the first-instance department was correct. In the case in hand, the aforementioned facts, including the request made by both parties, were in the board's view special reasons within the meaning of Art. 11 RPBA 2020. See also T.516/18.

In T.2450/17, the contested decision was based solely on the grounds for opposition under Art. 100(b) and 100(c) EPC. Since the primary object of appeal proceedings was to review the decision of the department of first instance but the novelty and inventive-step objections raised against the patent had not been fully examined there, the board found that there were special reasons for remitting the case to the department of first instance for further prosecution, as requested by all the parties. Had the case not been remitted, the losing side would have had to accept a first yet final decision on key patentability requirements, without the option to appeal, solely because a decision had already been handed down on other patentability requirements, albeit one that ultimately did not stand up to legal scrutiny. See the similar cases T.731/17, T.1754/15 and T.1966/16.

c) Undue burden

In T.1531/16 the board held that it was to be decided on a case-by-case basis whether there were any special reasons within the meaning of Art. 11 RPBA 2020 and that this was not the case if all the relevant issues could be decided on without undue burden. With that in mind, the board considered all the relevant circumstances in the case in hand and concluded that the key patentability issues could not be decided on in the appeal proceedings without undue burden. The basis required to do so could instead be established only in further examination proceedings (see also T.601/19, T.2669/17).

In T.3247/19 insufficiency of disclosure was the sole ground for refusal mentioned in the contested decision. As there were no substantive arguments present in the appeal proceedings relating to any patentability issues other than Art. 83 EPC, the board could not come to a decision regarding further patentability requirements on the basis of the current appeal case alone. The board was aware that, according to Art. 11, first sentence, RPBA 2020, a remittal for further prosecution should only be undertaken exceptionally, when special reasons apply. After considering all the relevant circumstances of the case at hand, the board came to the conclusion that the issues relevant to patentability in the case in hand, including but not limited to the examination of novelty, inventive step and clarity, could not be decided upon without undue burden (see also T.1650/19).

In T.578/16 the board stated that ruling on novelty and inventive step for the first time on appeal would constitute an undue burden and run counter to the very purpose of a judicial review within the meaning of Art. 12(2) RPBA 2020. See also T.411/17.

In T.131/18, the outstanding issues were too complex to have been handled by the board from scratch without undue burden.

d) Different interpretation of terms

In T.1265/15 the board found that the subject-matter of claim 1 of the main request was novel in view of the disclosure of D1 and thus overcame the reasons for refusal given in the decision under appeal. It also found that claim 1 involved an inventive step in view of D1. Having based these findings on a different interpretation of D1 from that in the decision, the board judged it appropriate to remit the case to the examining division for further prosecution, so that it had the opportunity to reassess the invention in view of the other prior art on file.

In T.2024/15 the examining division had based its inventive-step objection on an interpretation of claim 1 which was not in line with either the normal meaning of the terms used or the description in the application. Thus, if the board decided not to remit the case to the department of first instance, it would have to carry out a full examination of the application as to the patentability requirements on the basis of the correct interpretation of the claims. This, however, was the task of the examining division (see G.10/93, OJ 1995, 172). The board would even have to determine whether an additional search was necessary. Hence, it concluded that the issues relevant to patentability in this case could not be decided upon without undue burden (see T.3247/19) and, despite the long duration of the proceedings, remitted the case to the department of first instance.

In T.607/17 the board interpreted the wording of claim 1 differently from the opposition division, namely in a substantially broader sense. The facts of the case were fundamentally changed by this new interpretation of the claim wording. The consequence was that the subject-matter of claim 1 of the main request lacked novelty over D1, whereas the appealed decision had concluded that neither D1 nor any other available prior-art document anticipated this subject-matter. This meant the board would have to assess the patentability of the subject-matter of claim 1 of the auxiliary requests on the basis of this new interpretation of the claim wording for the first time. This amounted to a fresh case, and that alone justified remitting the case to the department of first instance for further prosecution.

9.3.3 Procedural economy

In T.350/17 the respondents argued that remitting the case would unnecessarily delay the proceedings. The board considered that, in the case in hand, the patentee's request to have the question of inventive step examined at two different levels of jurisdiction took precedence over procedural economy, because the patentee was deprived of a decision at first instance on this matter as a result of the substantial procedural violation. For the sake of completeness, the board also noted that the concept of "special reasons" in